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24-CIV-00896 MOHAMMEDHOSSEIN SADGHE VS. NIKOLAS MACIAS, ET AL.

LINE 2

MOHAMMEDHOSSEIN SADGHE
NIKOLAS MACIAS

ELIVAHU YULI KAPLUNOVSKY
COREY M. POLLAK

DEFENDANTS: NIKOLAS MACIAS AND ALAN DE SILVA'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motion of Corey M. Pollak to be relieved as counsel for defendants Nikolas Macias, Alan De Silva and Pit Stop Auto Services, LLC is denied without prejudice. The Pollak declaration states that the moving papers were served on defendants by mail at their last known address and that the address was confirmed as current by monthly statements which were not returned as undeliverable. However, the POS indicates defendants were served electronically. If the notice of motion is served electronically, California Rules of Court, rule 3.1362(d) provides that it must be accompanied by a declaration stating the electronic address is current. Current is defined to mean that the address has been confirmed within 30 days before filing the motion. The Pollak declaration does not indicate that the electronic service address has been confirmed as current.

However, if Mr. Pollack can cure this procedural deficiency by filing appropriate documents establishing that service was proper and provide courtesy copies to Dept11@sanmateocourt.org prior to 2 p.m. on Monday **and appears**, the Court will consider granting the motion.

Any party who contests a tentative ruling must email Dept11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

02:00 PM

24-CIV-03420 KYNA LIM VS. CITY OF MENLO PARK

LINE 2

KYNA LIM
CITY OF MENLO PARK

PRO PER
NICHOLAS SYREN

PLAINTIFF: KYNA LIM'S MOTION FOR RECONSIDERATION OF THE JULY 20, 2026 ORDER SUSTAINING DEFENDANT'S DEMURRER TO THE SECOND AMENDED COMPLAINT WITHOUT LEAVE TO AMEND, LIMITED TO THE COURT'S DETERMINATION DENYING LEAVE TO AMEND (CCP 1008(A)), OR, IN THE ALTERNATIVE, SUGGESTION THAT THE COURT RECONSIDER ON ITS OWN MOTION

TENTATIVE RULING:

The Court again notes that Plaintiff's proofs of service of the moving and reply papers include her declaration that she served the papers herself, which violates Code of Civil Procedure section 1013a, subdivision (1). Defendant does not object and has responded, so there is no prejudice, and the Court finds the defect to have been waived. Plaintiff is admonished not to sign proofs of service herself. Plaintiff Kyna Lim's Motion for Reconsideration, Etc. (the "Motion") is DENIED.

Background

Per the allegations of the Second Amended Complaint ("SAC"), Defendant failed to maintain its tree (the "Tree") that was adjacent to her property (the "Property"), damaging her water and sewer lines and her foundation, resulting in economic and health-related damages. Plaintiff repeatedly reported the issues with the Tree to another city years earlier (in 2015), believing it to be the responsible party. Plaintiff was redirected to Defendant in October 2023.

The Court sustained Defendant's demurrer to the SAC (the "Demurrer"), without leave to amend. (Minute Order, July 20, 2026 (the "Order").) Concerning leave to amend, the aspect of the order to which the Motion is directed, the Court held that:

While opposing the demurrer and repeatedly asking for leave to amend, Plaintiff has failed to identify any facts that Plaintiff contends Plaintiff could allege and that would cure the legal defects in the Second Amendment Complaint. This lawsuit is more than two years old and based on the facts Plaintiff has already alleged it seems highly unlikely that she will be able to plead around the very untimely nature of the lawsuit. Accordingly, leave to amend is tentatively DENIED as futile.

However, if Plaintiff believes it is possible to address the deficiencies identified in this tentative, Plaintiff must contest the tentative and appear to explain in reasonable detail what facts Plaintiff can allege to cure. If Plaintiff does, the Court will consider those facts and reconsider granting leave. (Order, p.6.)

Plaintiff did appear on July 20, 2026 and identified those facts that she contended she could add/delete to a Third Amended Complaint. But having considered those facts, the Court concluded that they would not cure the deficiencies.

Accordingly, Plaintiff brings the Motion seeking reconsideration of the Court's denial of leave to amend so that she may file a Third Amended Complaint ("TAC"). In the alternative to granting the Motion,
